

HIPAA Business Associate Addendum

Introduction

This HIPAA Business Associate Addendum is required for every healthcare entity that wishes to be a Customer of the HealthDesk.

To enter into this agreement, you must verify that you have read and understand this Agreement, that you have full legal authority to bind the entity to this Agreement, and that you agree to all terms and conditions of this Agreement on behalf of the entity.

Effective Date

The effective date shall be the date this agreement is signed by the representative of the healthcare entity.

Agreement

HIPAA Business Associate Addendum

This HIPAA Business Associate Addendum ("BAA") is entered into between MD3C, LTD ("MD3C") and the Customer agreeing to the terms below ("Healthcare Entity"), and supplements, amends and is incorporated into the Terms of Use (defined below) solely with respect to Covered Services (defined below). This BAA will be effective when Healthcare Entity clicks to accept this Agreement (the "BAA Effective Date").

Healthcare Entity must also agree to the HealthDesk Terms of Use and Privacy Policy for this BAA to be valid and effective. Together with the Terms of Use, this BAA will govern each party's respective obligations regarding Protected Health Information (defined below).

You represent and warrant that (i) you have the full legal authority to bind Healthcare Entity to this BAA, (ii) you have read and understand this BAA, and (iii) you agree, on behalf of Healthcare Entity, to the terms of this BAA.

If you do not have legal authority to bind Healthcare Entity, or do not agree to these terms, please do not sign or click to accept the terms of this BAA.

1. Definitions. Any capitalized terms used but not otherwise defined in this BAA will have the meaning given to them in either (a) HIPAA and the HITECH Act or (b) the Terms of Use.

"Business Associate" has the definition given to it under HIPAA.

"Breach" has the definition given to it under HIPAA. A Breach will not include an acquisition, access, use, or disclosure of PHI with respect to which MD3C has determined in accordance with 45 C.F.R. § 164.402 that there is a low probability that the PHI has been compromised.

"Covered Entity" has the definition given to it under HIPAA.

“Covered Services” means any MD3C product or service that this agreement applies to.

“HIPAA” means the Health Insurance Portability and Accountability Act of 1996 and the rules and the regulations thereunder, as amended.

“HITECH Act” means the Health Information Technology for Economic and Clinical Health Act enacted in the United States Congress, which is Title XIII of the American Recovery & Reinvestment Act, and the regulations thereunder, as amended.

“Protected Health Information” or “PHI” has the definition given to it under HIPAA and for purposes of this BAA is limited to PHI within Healthcare Entity Data to which MD3C has access through the Covered Services in connection with Healthcare Entity’s permitted use of Covered Services.

“Security Breach” means any Breach of Unsecured PHI or Security Incident of which MD3C becomes aware.

“Security Incident” has the definition given to it under HIPAA.

“Services Agreement(s)” means the written agreement(s) entered into between MD3C and Healthcare Entity for provision of the Covered Services, which agreement(s) may be in the form of online Terms of Use.

“Unsecured PHI” has the definition given to it under HIPAA.

2. Applicability. This BAA applies to the extent Healthcare Entity is acting as a Covered Entity or a Business Associate to create, receive, maintain, or transmit PHI via a Covered Service and to the extent MD3C, as a result, is deemed under HIPAA to be acting as a Business Associate or Subcontractor of Healthcare Entity. Healthcare Entity acknowledges that this BAA does not apply to, or govern, any other MD3C product, service, or feature that is not a Covered Service.

3. Use and Disclosure of PHI.

(a) Except as otherwise stated in this BAA, MD3C may use and disclose PHI only as permitted or required by the s and/or this BAA or as Required by Law.

(b) MD3C may use and disclose PHI for the proper management and administration of MD3C’s business and to carry out the legal responsibilities of MD3C, provided that any disclosure of PHI for such purposes may only occur if: (1) Required by Law; or (2) MD3C obtains written reasonable assurances from the person to whom PHI will be disclosed that it will be held in confidence, used only for the purpose for which it was disclosed, and that MD3C will be notified of any Security Breach.

(c) MD3C has no obligations under this BAA with respect to any PHI that Healthcare Entity creates, receives, maintains, or transmits outside of the Covered Services (including Healthcare Entity’s use of its offline or on- premise storage tools or third-party applications) and this BAA

will not apply to any PHI created, received, maintained or transmitted outside of the Covered Services.

4. Healthcare Entity Obligations.

(a) Healthcare Entity may use the Covered Services to create, receive, maintain, or transmit PHI. Healthcare Entity is solely responsible for managing whether Healthcare Entity's End Users are authorized to share, disclose, create, and/or use PHI within the Covered Services.

(b) Healthcare Entity will not request that MD3C or the Covered Services use or disclose PHI in any manner that would not be permissible under HIPAA if done by Healthcare Entity (if Healthcare Entity is a Covered Entity) or by the Covered Entity to which Healthcare Entity is a Business Associate (unless expressly permitted under HIPAA for a Business Associate).

(c) For End Users that use the Covered Services in connection with PHI, Healthcare Entity will use controls available within the Services, including those detailed in the HIPAA Implementation Guide, to ensure its use of PHI is limited to the Covered Services. Healthcare Entity acknowledges and agrees that any implementation guidelines or advice provided by MD3C are provided by MD3C solely as an informational guide with respect to Healthcare Entity's configuration options, and that Healthcare Entity is solely responsible for ensuring that its and its End Users' use of the Covered Services complies with HIPAA and HITECH.

(d) Healthcare Entity will take appropriate measures to limit its use of PHI to the Covered Services and will limit its use within the Covered Services to the minimum extent necessary for Healthcare Entity to carry out its authorized use of such PHI.

(e) Healthcare Entity warrants that it has obtained and will obtain any consents, authorizations and/or other legal permissions required under HIPAA and/or other applicable law for the disclosure of PHI to MD3C. If there are any changes in, or revocation of, the permission given by an Individual for use or disclosure of PHI, Healthcare Entity is responsible for managing its use of the Covered Services accordingly to update and/or delete such PHI in the Covered Services.

5. Appropriate Safeguards. MD3C and Healthcare Entity will each use appropriate safeguards designed to prevent against unauthorized use or disclosure of PHI, and as otherwise required under HIPAA, with respect to the Covered Services.

6. Reporting.

(a) Subject to Section 6(d), MD3C will promptly notify Healthcare Entity following MD3C's Discovery of a Security Breach in accordance with HIPAA and in the most expedient time possible under the circumstances, consistent with the legitimate needs of applicable law enforcement and applicable laws, and after taking any measures MD3C deems necessary to determine the scope of the Security Breach and to restore the reasonable integrity of MD3C's systems.

(b) To the extent practicable, MD3C will use commercially reasonable efforts to mitigate any further harmful effects of a Security Breach caused by MD3C.

(c) MD3C will send any applicable Security Breach notifications to the notification email address provided by Healthcare Entity in the or via direct communication with the Healthcare Entity.

(d) Notwithstanding Section 6(a), this Section 6(a) will be deemed as notice to Healthcare Entity that MD3C periodically receives unsuccessful attempts for unauthorized access, use, disclosure, modification or destruction of information, or interference with the general operation of MD3C's information systems and the Covered Services. Healthcare Entity acknowledges and agrees that even if such events constitute a Security Incident as that term is defined under HIPAA, MD3C will not be required to provide any notice under this BAA regarding such unsuccessful attempts other than this Section 6(d).

7. Subcontractors. MD3C will take appropriate measures to ensure that any Subcontractors used by MD3C to perform its obligations under the s that require access to PHI on behalf of MD3C are bound by written obligations that provide the same material level of protection for PHI as this BAA. To the extent MD3C uses Subcontractors in its performance of obligations hereunder, MD3C will remain responsible for their performance as if performed by MD3C.

8. Access and Amendment. Healthcare Entity acknowledges and agrees that Healthcare Entity is solely responsible for the form and content of PHI maintained by Healthcare Entity within the Covered Services, including whether Healthcare Entity maintains such PHI in a Designated Record Set within the Covered Services. MD3C will provide Healthcare Entity with access to Healthcare Entity's PHI via the Covered Services so that Healthcare Entity may fulfill its obligations under HIPAA with respect to Individuals' rights of access and amendment, but will have no other obligations to Healthcare Entity or any Individual with respect to the rights afforded to Individuals by HIPAA with respect to Designated Record Sets, including rights of access or amendment of PHI. Healthcare Entity is responsible for managing its use of the Covered Services to appropriately respond to such Individual requests.

9. Accounting of Disclosures. MD3C will document disclosures of PHI by MD3C and provide an accounting of such disclosures to Healthcare Entity as and to the extent required of a Business Associate under HIPAA and in accordance with the requirements applicable to a Business Associate under HIPAA.

10. Access to Records. To the extent required by law, and subject to applicable attorney client privileges, MD3C will make its internal practices, books, and records concerning the use and disclosure of PHI received from Healthcare Entity, or created or received by MD3C on behalf of Healthcare Entity, available to the Secretary of the U.S. Department of Health and Human Services (the "Secretary") for the purpose of the Secretary determining compliance with this BAA.

11. Expiration and Termination.

(a) This BAA will terminate on the earlier of (i) a permitted termination in accordance with Section 11(b) below, or (ii) the expiration or termination of all s under which Healthcare Entity has access to a Covered Service.

(b) If either party materially breaches this BAA, the non-breaching party may terminate this BAA on 10 days' written notice to the breaching party unless the breach is cured within the 10-day

period. If a cure under this Section 11(b) is not reasonably possible, the non-breaching party may immediately terminate this BAA, or if neither termination nor cure is reasonably possible under this Section 11(b), the non-breaching party may report the violation to the Secretary, subject to all applicable legal privileges.

(c) If this BAA is terminated earlier than the Terms of Use, Healthcare Entity may continue to use the Services in accordance with the Terms of Use, but must delete any PHI it maintains in the Covered Services and cease to further create, receive, maintain, or transmit such PHI to MD3C.

12. Return/Destruction of Information. On termination of the Terms of Use, MD3C will return or destroy all PHI received from Healthcare Entity, or created or received by MD3C on behalf of Healthcare Entity; provided, however, that if such return or destruction is not feasible, MD3C will extend the protections of this BAA to the PHI not returned or destroyed and limit further uses and disclosures to those purposes that make the return or destruction of the PHI infeasible.

13. Miscellaneous.

(a) Survival. Sections 12 (Return/Destruction of Information) and 13 (Miscellaneous) will survive termination or expiration of this BAA.

(b) Counterparts. The parties may execute this BAA in counterparts, including facsimile, PDF or other electronic copies, which taken together will constitute one instrument.

(c) Effects of Addendum. To the extent this BAA conflicts with the remainder of the Terms of Use, this BAA will govern. This BAA is subject to the "Governing Law" section in the Terms of Use. Except as expressly modified or amended under this BAA, the terms of the Terms of Use remain in full force and effect.

Accepted Agreement

If you don't have the legal authority to bind the healthcare entity you represent to this agreement, please do not accept this agreement.

I am accepting this Agreement on behalf of the entity MD3C, LTD.. I represent and warrant that (a) I have full legal authority to bind the entity to this Agreement, (b) I have read and understand this Agreement, and (c) I agree to all terms and conditions of this Agreement on behalf of the entity that I represent.